



# Dora

Department of Regulatory Agencies

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and Occupations**  
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Division Director

**Mental Health Programs**  
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John W. Hickenlooper  
Governor

Barbara J. Kelley  
Executive  
Director

August 21, 2013

Stephanie A Thiel  
434 S Clarkson St  
Denver, CO 80209

RE: Case #2013-935 & 2013-2008

Dear Ms. Thiel:

Enclosed is a copy of the signed Stipulation and Final Agency Order (Order) that became effective August 21, 2013. Your license will be mailed in 10 – 14 days.

Your license to practice has been placed on probation until you complete all terms outlined in your Order including abstaining from the use of any addictive substances.

There may be other terms and requirements pursuant to this Order for which you are responsible that are not outlined within this letter. The Board expects you to read, fully understand, and comply with the requirements outlined in the Order.

*Per §24-34-110(8)(a), C.R.S., you are required to update your online Healthcare Profession Profile within 30 days after the date of any public disciplinary action, public action, restriction or suspension. Visit [www.dora.colorado.gov/professions/hppp](http://www.dora.colorado.gov/professions/hppp) to update your profile or contact the Healthcare Professions Profiling Program directly at [DORA\\_DPO\\_hppp@state.co.us](mailto:DORA_DPO_hppp@state.co.us) or (303) 894-5942 with any questions.*

Please contact me at [jessica.googins@state.co.us](mailto:jessica.googins@state.co.us), or (303) 894-7767 with any questions or concerns.

Sincerely,

FOR THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS

Jessica Googins  
Discipline & Enforcement Specialist

Enclosures: Order

JG



BEFORE THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS AND THE  
STATE BOARD OF SOCIAL WORK EXAMINERS

STATE OF COLORADO

Case Nos. 2013-935 and 2013-2008

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**STIPULATION AND FINAL AGENCY ORDER**

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IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE  
REGISTRATION TO PRACTICE AS A REGISTERED PSYCHOTHERAPIST IN THE  
STATE OF COLORADO AND THE PROVISIONAL LICENSE TO PRACTICE AS A  
SOCIAL WORKER IN THE STATE OF COLORADO OF STEPHANIE THIEL,  
REGISTRATION NO. NLC 103720 AND LICENSE NO. SWP (Pending),

Applicant.

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IT IS HEREBY STIPULATED by and between the State Board of Registered  
Psychotherapists and the State Board of Social Work Examiners (together, "Boards") and  
Stephanie Thiel ("Applicant") as follows:

1. On or about June 30, 2012 Applicant applied for registration in the database to practice as a registered psychotherapist ("RP") in the State of Colorado ("RP Application"). Applicant received her RP registration on April 19, 2013. By application dated December 4, 2012, Applicant applied for a provisional license to practice social work ("SWP") in the State of Colorado ("SWP Application"), and her request is currently pending.
2. The Boards have jurisdiction over Applicant, the SWP Application, and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of Applicant's initial applications for registration as a RP and provisional licensure as a SWP in the State of Colorado without the necessity of holding a formal hearing. This Order is a full and final resolution of case numbers 2013-935 and 2013-2008. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
  - a. On or about June 30, 2012, Applicant applied for registration as a RP in the State of Colorado.
  - b. On the RP Application, Applicant answered "yes" to question 10 which states: "Do you now abuse or excessively use, or have you in the last five years abused or

excessively used, any habit forming drug, including alcohol, or any controlled substance that has a) resulted in any accusation or discipline for misconduct, unreliability, neglect of work, or failure to meet professional responsibilities; or b) affected your ability to practice psychotherapy safely and competently?”

c. On or about December 4, 2012, Applicant applied for a provisional license to practice social work in the State of Colorado, and her request is currently pending.

d. On the SWP Application, Applicant answered “yes” to question 6 which states: “Have you ever received a deferred judgment or been convicted of or pled nolo contendere to a violation of any federal, state, or local law relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?”

e. Applicant reported that on or about November 22, 2009, she pled guilty to DWAI in Case No. 2009-2751 in City Court, Saratoga Springs, New York.

f. Applicant has admitted to substance abuse and a related conviction.

g. On April 19, 2013, Applicant executed and is currently under a Stipulation and Final Agency Order with the RP Board in case number 2013-935 (“April 2013 Order”) that includes the terms as outlined below. This Order is a continuation of the April 2013 Order and is intended to also include Applicant’s SWP Application and case number 2013-2008.

5. By virtue of the facts admitted in paragraph 4 above, the Boards find that Applicant violated §12-43-222(1)(e), C.R.S.

6. By virtue of the admissions contained in paragraph 4, Applicant specifically agrees to maintain her RP registration as previously granted and to accept a SWP license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a SWP license. Applicant consents to the following limitations to her SWP license within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this SWP license in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

### **PROBATION**

7. Applicant’s registration to practice psychotherapy and provisional license to practice social work in the State of Colorado are hereby placed on probation for one (1) year commencing from the effective date of the April 2013 Order, or from the date Applicant was approved for her RP registration, whichever date was later. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Applicant is not practicing as a RP and SWP in this state, and such period of probation shall resume at such time as Applicant resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a RP and SWP in Colorado and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of probation. Any request for termination of probation must be made in writing to the Boards, and Applicant is responsible for establishing, to the satisfaction of the Boards, that she has satisfied all terms and conditions of probation.

### **ABSTINENCE FROM ADDICTIVE SUBSTANCES**

11. During the period of probation, Applicant shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed or prescribed by an authorized person other than Applicant. Applicant shall use such habit-forming drug, controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

### **TERMS AND CONDITIONS**

12. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

13. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

14. All expenses incurred or necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Boards.

15. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Boards of the change of address within 30 days of the effective date of such change.

16. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

17. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

18. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

19. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

20. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

21. Applicant shall obey all state and federal laws while this Order is in effect.

22. This Order constitutes the entire agreement between Applicant and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

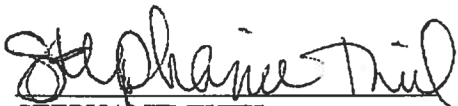
23. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Boards, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Boards. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Boards.

24. This Order shall be admissible as evidence at any hearing held before the Boards.

25. This Order shall be a public record in the custody of the Boards.

**AGREED TO AND ACCEPTED BY:**

APPLICANT

  
STEPHANIE THIEL  
REGISTRATION NO. RP 103720  
SWP NO. (Pending)

**AGREED TO AND ORDERED BY:**

BOARD OF REGISTERED  
PSYCHOTHERAPISTS AND BOARD OF  
SOCIAL WORK EXAMINERS

  
JACQUILINE ARCELIN  
Acting Program Director

Effective this 21 day of

August, 2013.

**CERTIFICATE OF SERVICE**

This is to certify that I have duly served the within fully executed STIPULATION AND FINAL AGENCY ORDER upon all parties herein by electronic means or by depositing copies of same in the United States mail, first-class postage prepaid, at Denver, Colorado, this 21 day of August, 2013, addressed as follows:

Stephanie Thiel  
434 S. Clarkson St.  
Denver, CO 80209

By email: [stephanie.thiel412@gmail.com](mailto:stephanie.thiel412@gmail.com)

  
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Division Staff